

COMMERCIAL AGREEMENT (Excerpted Clauses)

1. This Agreement shall be governed by the laws of the State of Arizona applicable to agreements fully executed and performed therein. This Agreement will be deemed entered into in Arizona and will be governed by and interpreted in accordance with the internal substantive laws of the State of Arizona without reference to conflicts of law provisions.

2. Any claim of nonconformity or defect in the Products or otherwise made under these warranties must be presented promptly in writing setting forth in detail the nature of the nonconformity or defect to Polaris at its address above. Polaris shall have a commercially reasonable length of time, after notice and recognition of a claim of nonconformity or defect to remedy the nonconformity or defect by repair, replacement, or re-performance in accordance with the terms of this warranty. Polaris' obligation is exclusively limited to replacement parts, replacement equipment, or re-performance, as applicable, each at Polaris' option. These remedies are Customer's exclusive remedies for breach of warranty. NOTWITHSTANDING ANYTHING TO THE CONTRARY CONTAINED HEREIN OR IN ANY OTHER DOCUMENT OR AGREEMENT BETWEEN THE PARTIES, THE WARRANTIES SET FORTH IN THIS SECTION 7 ARE IN LIEU OF ALL OTHER WARRANTIES OF POLARIS; THERE ARE NO WARRANTIES, EXPRESS OR IMPLIED BY LAW, COURSE OF DEALING, USAGE, PERFORMANCE, OR OTHERWISE, INCLUDING BUT NOT LIMITED TO ANY AND ALL IMPLIED WARRANTIES OF MERCHANTABILITY, FITNESS FOR A PARTICULAR PURPOSE, OR NON-INFRINGEMENT. Polaris shall use commercially reasonable efforts to pass through the original manufacturer warranties related to any Products sold by Polaris to Customer pursuant to this Agreement.

3. Neither party may assign its rights or delegate its duties hereunder (except to an affiliated company, or to a successor in interest in the event of a merger, sale of assets of the business to which this Agreement is related, or consolidation) without the other party's prior written consent, and any purported attempt to do so is null and void.

4. Any disputes relating to, arising out of or resulting from this Agreement, including to its execution, performance, or enforcement, shall be governed by, and construed in accordance with, the Laws of the State of Delaware, regardless of the Laws that might otherwise govern under applicable principles of conflicts of Laws thereof.

5. AbbVie shall pay to Harpoon the royalty amounts due with respect to a given [***] within [***] after the end of such [***]. As further consideration for the rights granted to AbbVie hereunder, subject to Section 6.5.3, commencing upon the First Commercial Sale of a Licensed Product in the Territory, on a Licensed Product-by-Licensed Product basis, AbbVie shall pay to Harpoon a royalty on Net Sales of each Licensed Product in the Territory (excluding Net Sales of each Licensed Product in any country or other jurisdiction in the Territory for which the Royalty Term for such Licensed Product in such country or other jurisdiction has expired) during [***] at the following rates:

Net Sales in the Territory of each Licensed Product in a [***] Royalty Rate

For that portion of aggregate Net Sales of each Licensed Product [***] [***]

For that portion of aggregate Net Sales of each Licensed Product [***] [***]

For that portion of aggregate Net Sales of each Licensed Product [***] [***]

With respect to each Licensed Product in each country or other jurisdiction in the Territory, [***].

6. 2.2 Shipment

The Distributor agrees that the Company shall not be liable for its failure to perform due to any occurrence beyond the Company's reasonable control, including but not limited to acts of God, fires, floods, wars, sabotage, accidents in shipping beyond the Company's control, labor strikes other than strikes against the Company itself, weather conditions, or foreign or domestic government regulation or authority which directly affects Company's ability to deliver Product. Neither the Distributor nor the Company shall have liability for consequential or liquidated damages pertaining to late delivery unless Company specifically acknowledges and agrees in writing to the same.

7. The term of this Agreement shall commence upon the Effective Date and, unless earlier terminated pursuant to this Article XII, shall continue in full force and effect until the expiration of Sanofi's payment obligations under Article IX or the Profit/Loss Share Agreement, whichever is later (the "Term").